

Court No. - 9

Case :- WRIT - C No. - 47449 of 2015

Petitioner :- Shareef Ahmad

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Mohammad Akram

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Arun Tandon,J.

Hon'ble Shashi Kant,J.

Put up tomorrow i.e. 25.08.2015 in order to enable the counsel for the Corporation to obtain instruction.

Order Date :- 17.8.2015

Pkb/

Court No. - 32

Case :- WRIT - C No. - 47449 of 2015

Petitioner :- Shareef Ahmad

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Mohammad Akram

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Rakesh Tiwari,J.

Hon'ble Mukhtar Ahmad,J.

After hearing learned Counsel for the parties and on perusal of record as well as judgment rendered in the case of Vinod Kumar Agarwal Vs. State of U.P. & others decided on 10.07.2012 (Writ C No. 24772 of 2012), wherein , it has been held as under;

" Shri Mahboob Ahmad has filed an affidavit of Sri Awanish Kumar Awasthi, Chairman and Managing Director of U.P. Power Corporation Ltd, Shakti Bhavan, 14 Ashok Marg, Lucknow in compliance with the aforesaid orders. Along with the affidavit, he has annexed an order dated 30.6.2012 passed by him in which has quoted Section 126 of the electricity Act, 2003, and clause 6.8 of the U.P. electricity Code, 2005 and has directed all the Corporations distributing electricity and the Executive Engineers of the electricity Distribution Divisions to strictly follow the procedures prescribed under Section 126 of the act and under Clause 6.8 of the electricity Supply Code, 2005 and not to issue any recovery certificates, until and unless final assessment is made in theft case, after giving reasonable opportunity of hearing to the consumer/user under sub-section(3) of Section 126. The order, under sub-section(3) of Section 126, shall be passed within 30 days from the date of service of provisional assessment. He has also directed that the recoveries already issued without making final assessment should be withdrawn forthwith, but the same shall be issued again immediately after passing an order of final assessment and all such matters, in which recoveries are withdrawn, shall be finalized within a period of three months from the date of its withdrawal. In the last, paragraph of the order dated 30.6.2012, the Chairman and Managing Director, U.P. Power Corporation Limited has directed all the officers to ensure that the recoveries will be sent in future only in those cases in which final assessment order has been passed, failing which necessary action shall be taken against the concerning/authorized officers.."

Per contra Sri Pranjal Mehrotra, learned Counsel for the Corporation submits that petitioner has remedy to file suit Uttar

Pradesh Government Electrical Undertaking (Dues Recovery) Act, 1958.

However, in view of judgment rendered in the case of Vinod Kumar Agarwal (supra), we direct the respondents hto file counter affidavit within three weeks. Rejoinder affidavit may be filed within two weeks thereafter.

List this matter immediately after expiry of aforesaid period.

Till the next date of listing, recovery pursuant to the impugned demand notice dated 13.07.2015 (annexure 10) shall remain stayed.

Order Date :- 25.8.2015

Shahid

Court No. - 39

Case :- WRIT - C No. - 47449 of 2015

Petitioner :- Shareef Ahmad

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Mohammad Akram

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Dilip Gupta,J.

Hon'ble Mukhtar Ahmad,J.

List in the second week of March 2016.

Interim order, granted earlier, shall continue till the next date of listing.

Order Date :- 25.1.2016

Fhd.

(Mukhtar Ahmad, J.) (Dilip Gupta, J.)

Court No. - 41

Case :- WRIT - C No. - 47449 of 2015

Petitioner :- Shareef Ahmad

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Mohammad Akram

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Vikram Nath,J.

Hon'ble Amar Singh Chauhan,J.

List after two weeks.

Interim order, if any, granted earlier shall continue till the next date of listing.

Order Date :- 8.3.2016

Ishrat

Court No. - 21

Case :- WRIT - C No. - 47449 of 2015

Petitioner :- Shareef Ahmad

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Mohammad Akram

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble V.K. Shukla,J.

Hon'ble Umesh Chandra Srivastava,J.

List this matter in the first week of August, 2016.

Interim order, if any, stands extended till the next date of listing.

Order Date :- 13.5.2016

Bhanu

Court No. - 21

Case :- WRIT - C No. - 47449 of 2015

Petitioner :- Shareef Ahmad

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Mohammad Akram

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble V.K. Shukla,J.

Hon'ble Mahesh Chandra Tripathi,J.

List after three weeks. The stay order, already granted by this Court, stands extended till the next date of listing.

Order Date :- 16.8.2016

SP/

Court No. - 21

Case :- WRIT - C No. - 47449 of 2015

Petitioner :- Shareef Ahmad

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Mohammad Akram

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble V.K. Shukla,J.

Hon'ble Mahesh Chandra Tripathi,J.

List this writ petition after four weeks.

Interim order, already granted by this Court, stands extended till the next date of listing.

Order Date :- 22.9.2016

pks

Court No. - 21

Case :- WRIT - C No. - 47449 of 2015

Petitioner :- Shareef Ahmad

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Mohammad Akram

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble V.K. Shukla,J.

Hon'ble Mahesh Chandra Tripathi,J.

List this matter after four weeks.

Interim order, if any, is extended till the next date of listing.

Order Date :- 2.11.2016

Jaswant

Court No. - 21

Case :- WRIT - C No. - 47449 of 2015

Petitioner :- Shareef Ahmad

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Mohammad Akram

Counsel for Respondent :- C.S.C.,Pranjal
Mehrotra

Hon'ble V.K. Shukla,J.

Hon'ble Mahesh Chandra Tripathi,J.

List this writ petition after four weeks.

Interim order, already granted by this Court,
stands extended till the next date of listing.

Order Date :- 5.12.2016

pks

Court No. - 21

Case :- WRIT - C No. - 47449 of 2015

Petitioner :- Shareef Ahmad

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Mohammad Akram

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble V.K. Shukla,J.

Hon'ble Mrs. Sangeeta Chandra,J.

List after four weeks.

Interim order already granted stands extended till the next date of listing.

Order Date :- 11.1.2017

Arif

Court No. - 21

Case :- WRIT - C No. - 47449 of 2015

Petitioner :- Shareef Ahmad

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Mohammad Akram

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble V.K. Shukla,J.

Hon'ble Mrs. Sangeeta Chandra,J.

List after three weeks.

Interim order, already passed by this Court, stands extended till the next date of listing.

Order Date :- 9.2.2017

Arif

Court No. - 21

Case :- WRIT - C No. - 47449 of 2015

Petitioner :- Shareef Ahmad

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Mohammad Akram

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble V.K. Shukla,J.

Hon'ble Ashok Kumar,J.

One month and no more time is allowed to file counter affidavit.

List this matter after one month.

Interim order already passed by this Court stands extended till the next date of listing.

Order Date :- 20.3.2017

SK Srivastava

Court No. - 34

Case :- WRIT - C No. - 47449 of 2015

Petitioner :- Shareef Ahmad

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Mohammad Akram

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Sudhir Agarwal,J.

Hon'ble Ajit Kumar,J.

1. Adjournment has been sought by Sri Mohammad Akram, learned counsel for petitioner, on the ground of illness.

2. Passed over.

3. List on 04.12.2017 peremptorily.

Order Date :- 24.11.2017

PS

Court No. - 34

Case :- WRIT - C No. - 47449 of 2015

Petitioner :- Shareef Ahmad

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Mohammad Akram

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Sudhir Agarwal,J.

Hon'ble Ajit Kumar,J.

1. Called in revised. None appeared on behalf of petitioner. However, Sri Nand Kumar Shukla holding brief of Sri Pranjal Mehrotra, learned counsel for respondents are present. We have perused the record.

2. By means of the present writ petition, petitioner has sought the following reliefs:

"a. to issue a writ, order or direction in the nature of certiorari quashing the impugned demand notice dated 13.07.2015 (annexure no. 10 to the writ petition) issued by the respondent no. 3/ Executive Engineer, Vidyut Vitran Khand, Bijnor;

b. to issue a writ, order or direction in the nature of mandamus commanding the respondents not to proceed any recovery against the petitioner in pursuance of impugned demand notice dated 13.07.2015 during the pendency of the present writ petition before this Hon'ble Court."

3. However, we ourselves have gone through the pleadings, grounds as also reliefs sought and find that petitioner is not able to make out a case so as to justify interference of this Court by granting reliefs, as prayed for.

4. Moreover, it appears that either the cause of action no more survives or that petitioner has lost interest in this matter or it has otherwise become infructuous and, probably for this reason, none is interested to have decided this matter on merits and that is why, counsel for petitioner is absent.

5. Dismissed. Interim order, if any, stands vacated.

Order Date :- 4.12.2017

IrfanUddin